

CHAPTER 26.

An Act to render valid Marriages heretofore solemnized at the Ellerker Chapel-of-Ease, Brantingham, and at the Churches of Saint Mark, Marske-in-Cleveland, All Saints, Brightwaltham (otherwise Brightwalton) and Saint Mary, Great Ilford, and at the Old Baptist Union Chapel, Grays Thurrock, and Marriages solemnized after banns published at the Mission Room in the parish of Marrick.
[14th August 1903.]

WHEREAS the Ellerker Chapel-of-Ease, in the parish of Brantingham, in the county and diocese of York, was rebuilt and consecrated for the performance of divine service in the year eighteen hundred and forty-four, but does not appear to have been licensed by the bishop of the said diocese or otherwise for the publication of banns and the solemnization of marriages therein :

And whereas the church of Saint Mark, in the parish of Marske-in-Cleveland, in the county and diocese of York, was built and consecrated in the year eighteen hundred and sixty-seven, and the church of All Saints in the parish of Brightwaltham (otherwise Brightwalton), in the county of Berkshire and diocese of Oxford, was built and consecrated in the year eighteen hundred and sixty-three, and in each case the church so built was intended to be substituted for the ancient parish church of the parish, but it does not appear that any deed of substitution was executed at the time :

And whereas, by a deed of substitution dated the twenty-fourth of April nineteen hundred and two, the church of Saint Clement, Great Ilford, in the county of Essex and diocese of Saint Alban's, was substituted as the parish church for the old parish church of Saint Mary, and the latter church thereby ceased to be one in which marriages could legally be solemnized, until again licensed by the bishop :

And whereas divers marriages have nevertheless been solemnized in the said chapel and churches respectively :

And whereas in the years nineteen hundred and one and nineteen hundred and two certain marriages were solemnized in the Old Baptist Union Chapel at Grays Thurrock, in the district of Orsett, in the county of Essex, and the said chapel was not registered by the Registrar-General pursuant to the Marriages Act, 1836 :

6 & 7 Will. 4.
c. 85.

And whereas, since the month of September in the year eighteen hundred and ninety-three, certain banns have been published in the Mission Room of the parish of Marrick, in the North Riding of the county of York and in the diocese of Ripon, and certain marriages have been solemnized after those banns, but that Mission Room was not licensed for the publication of banns :

And whereas it is expedient under the circumstances afore-said to remove all doubts touching the validity of the marriages so solemnized :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows

Validation
of certain
marriages
heretofore
solemnized.

1.—(1) All banns of matrimony and marriages published and solemnized before the passing of this Act in the said Ellerker Chapel-of-Ease and in the said churches of Saint Mark, Marske-in-Cleveland, All Saints, Brightwaltham (otherwise Brightwalton) and Saint Mary, Great Ilford, shall be as valid as if they had been published and solemnized in a church duly consecrated and licensed for marriages.

(2) All marriages solemnized in the said Old Baptist Union Chapel at Grays Thurrock, in the district of Orsett, in the county of Essex, during the years aforesaid, shall be as valid as if the said chapel had been duly registered in accordance with the provisions of the above recited Act before the solemnization of those marriages.

(3) All banns published in the said Mission Room in the parish of Marrick since the month of September in the year eighteen hundred and ninety-three, and all marriages solemnized after those banns, shall be as valid as if the Mission Room had been duly licensed for the publication of banns.

(4) A minister who has solemnized any marriage to which this section refers shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized the marriage.

(5) The register of the marriages so solemnized, or copies of the register, shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized, or copies thereof, are by law receivable in evidence.

Short title.

2. This Act may be cited as the Marriages Legalization Act, 1903.

CHAPTER 27.

An Act to authorise the Treasury to guarantee the payment of a Loan to be raised by the Transvaal, and to provide for the application of any sums paid by that Colony or the Orange River Colony towards the expenses incurred by His Majesty's Government in or incidental to the prosecution of the late war in South Africa.
[14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
Treasury to
guarantee
loans.

1.—(1) The Treasury may, subject to the provisions of this Act, guarantee, in such manner as they think fit, the payment of the interest at a rate not exceeding three per cent. per annum on